

STATE OF NEW YORK

413--A

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. VANEL -- read once and referred to the Committee on Codes -- recommitted to the Committee on Codes in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the penal law, in relation to unlawful surveillance in the first degree

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 250.50 of the penal law, as added by chapter 69 of
2 the laws of 2003, is amended to read as follows:

3 § 250.50 Unlawful surveillance in the first degree.

4 A person is guilty of unlawful surveillance in the first degree when
5 ~~[he or she]~~ such person:

6 1. commits the crime of unlawful surveillance in the second degree and
7 has been previously convicted within the past ten years of unlawful
8 surveillance in the first or second degree; or

9 2. commits the crime of unlawful surveillance in the second degree
10 against a person who has an active order of protection against them; or

11 3. commits the crime of unlawful surveillance in the second degree
12 against a person with the intent to benefit a person who has an active
13 order of protection against the person surveilled, and with knowledge of
14 such order of protection.

15 Unlawful surveillance in the first degree is a class D felony.

16 § 2. This act shall take effect on the ninetieth day after it shall
17 have become a law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD01931-02-6